

The Bureau Of Indian Standards (Recognition Of Consumers' Associations) Rules, 1991

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Union of India - Act

The Bureau Of Indian Standards (Recognition Of Consumers' Associations) Rules, 1991

UNION OF INDIA

India

The Bureau Of Indian Standards (Recognition Of Consumers' Associations) Rules, 1991

Rule THE-BUREAU-OF-INDIAN-STANDARDS-RECOGNITION-OF-CONSUMERS-ASSOCIATIONS-RULES-1991 of 1991

Published on 9 October 1991

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The Bureau Of Indian Standards (Recognition Of Consumers' Associations) Rules, 1991

Published Vide G.S.R. 619(E), dated 9-10-1991, published in the Gazette of India, Ext.,Pt.II, Section 3(i), dated 9-10-1991

331.

In exercise of the powers conferred by section 37 of the Bureau of Indian Standards Act, 1986 (63 of 1986), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement .-(1) These rules may be called the Bureau of Indian Standards (Recognition of

Consumers 'Associations) Rules, 1991.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions

.-In these rules, unless the context otherwise requires,-

(a)

"Act "means the Bureau of Indian Standards Act, 1986 (63 of 1986);

(b)

"Form "means a Form appended to the Schedule to these rules;

(c)

"Ministry "means the Ministry of Civil Supplies, Consumer Affairs and Public Distribution; and

(d)

"Principal Officer "in relation to a consumer association means any individual who is specifically authorised in writing or by means of a resolution adopted by such consumer association in that behalf.

3.

Application for recognition of consumers association

.-(1) Every consumers association which is desirous of being recognised as a registered consumers association,-

(a)

shall have not less than fifty consumers as its members; and

(b)

shall make an application for such recognition in triplicate to the Bureau of Indian Standards in Form I.

(2)

Every application made under sub-rule (1), shall be accompanied by a bank draft of rupees one thousand.

(3)

On receipt of an application made under sub-rule (1), the Bureau of Indian Standards shall note thereon the date of its receipt and shall forthwith communicate such date to the applicant.

(4)

The Bureau of Indian Standards may, before issue of a certificate of recognition, require the applicant to furnish, within such period as may be specified by it, such additional information as may be considered necessary within a period of 30 days of the receipt of that letter by the applicant.

(5)

On receipt of an application and such other additional information as may be sought under sub-rule (4), the Bureau of Indian Standards shall process the application and forward the documents to the Ministry of Civil Supplies, Government of India with its recommendations for their consideration.

(6)

On receipt of the recommendations of the Bureau under sub-rule (5), the Ministry shall consider those recommendations and after satisfying itself that the applicant association is fit to be recognised, may recognise the association in this behalf.

(7)

The certificate of recognition to be issued by the Ministry under sub-rule (6) shall be in Form II.

(8)

Where a certificate of recognition issued under these rules is lost, destroyed or mutilated, a duplicate may be issued on an application made in this behalf and on payment of a fee of rupees one hundred.

4.

Payment of fees

.-The fees payable under those rules shall be paid in the form of a bank draft in favour of the Bureau of Indian Standards, New Delhi.

5.

Refusal to grant certificate of recognition to consumer association

.-Where a certificate of recognition of a consumers association has been refused, the applicant shall be informed of the

reasons for such refusal by the Bureau.

6.

Copies of certificate of recognition to be furnished to certain authorities

.-Every consumer association which has been recognised as a "registered consumers "association under these rules, shall furnish a copy of the certificate of recognition issued to it while filing a complaint under section 34(1) of the Act.

7.

Verification of application

.-Every application made under these rules shall be duly verified by the principal Officer.

Schedule

FORM I

[See sub-rule (1) of rule 31

FORM OF APPLICATION TO BE SUBMITTED TO THE BUREAU OF INDIAN STANDARDS FOR RECOGNITION OF CONSUMERS' ASSOCIATION (TO BE SUBMITTED IN TRIPLICATE)

(1)

Name of the consumers' association:

(2)

Address:

(a)

Registered Office;

(b)

For correspondence;

(c)

Branches:

(3)

If registered under section 25 of the Companies Act, 1956, the date of registration.

(4)

If registered under any other law, the Act under which registered and date of registration:

(Certified copy of the certificate of registration to be enclosed).

(5)

Total number of members of the association (as on date of application).

(6)

Objects of the association (certified copy of Memorandum of Association to be enclosed alongwith copy of the rules and regulations of the association).

(7)

Names, addresses and occupations of persons on the Board of Directors, Governing Body, Council /Committee (by whatever name called), to whom the management of the affairs of the association is entrusted.

(8)

Number of employees:

(a)

Whole-time;

(b)

Part-time;

(9)

Year-wise details of the work done by the association during the last three years in the field of protection of consumers' interest.

(10)

Copies of published annual report and audited accounts of the association for the last three years.

(11)

Details of Laboratory organisation, if any, owned, run or operated by the association for purposes of protection of consumer's interest.

Place Signature.....

Date Name and Designation.....

VERIFICATION

Ido hereby solemnly state that what is stated in Items 1 to 11 above is true to the best of my knowledge and belief.

Place Signature.....

Date Name and Designation.....

FORM II

[See sub-rule (7) of rule 3]

CERTIFICATE OF RECOGNITION

Government of India

Ministry of Civil Supplies, Consumer Affairs and Public Distribution

Certified that the consumer's association whose particulars are given below, has, this day, been recognised as a "registered consumers' association" in terms of section 34 of the Bureau of Indian Standards Act, 1986 (63 of 1986).

Particulars

(1)

Name of the Consumers' Association:

(2)

Address:

(3)

Name of persons on the governing board/body/council to whom management of the Association is entrusted:

(4)

Number of members:

(5)

Registration number:

Signature

Date

File No

Seal of the Ministry of Civil Supplies,

Consumer Affairs and Public Distribution.

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